Filing # 259372938 E-Filed 10/16/2026 12:36:10 PM

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
THIRD DISTRICT

Case No: 3D2026-0260
LTC NO: 2021-9833-CA-01

Dr. Olanshile Shitta-Bey, et al.,
Appellant(s),

vs.

Joseph Durandis, et al.,
Appellee(s)
_____/

APPELLANT'S REPLY BRIEF

Table of Contents

1. ARGUMENT:

I. ORDER DENYING RULE 1.540(b)(4) RELIEF IS REVIEWED DE NOVO……..pg 1
II. THE PRIOR PCA, MANDATE, AND MANDAMUS DISMISSALS DO NOT ESTABLISH ADVANCE NOTICE OF DE92 OR NECESSARILY FORECLOSE REVIEW OF THE JANUARY 27, 2026 ORDER DENYING RULE 1.540(b)(4) RELIEF……pg 4
III. APPELLEES' "SINGLE NOTICE" THEORY FAILS UNDER RULE 1.100(b) AND ADMINISTRATIVE ORDER NO. 22-02, AND THEIR ALTERNATIVE NOTICE DEFENSE CANNOT SUPPORT AFFIRMANCE UNDER THE TIPSY-COACHMAN DOCTRINE….pg 9

IV. APPELLEES' CORRECTION UNDERCUTS THEIR CLAIM THAT APPELLANTS PARTICIPATED IN SCHEDULING OR KNEW DE 92 WOULD BE HEARD……..pg 18
V. THE UNDISCLOSED COURTMAP UPLOADS DID NOT PROVIDE ADVANCE NOTICE OF DE92 AND CONFIRM THE RESULTING DUE-PROCESS VIOLATION…….pg 18
VI. THE TRIAL COURT SUA SPONTE RELIED ON WAIVER—A DEFENSE APPELLEES DID NOT ASSERT—DESPITE APPELLANTS' EXPRESS OBJECTIONS TO THE UNNOTICED ADJUDICATION OF DE 92.……pg 20

2. CONCLUSION AND RELIEF REQUESTED ……pg 21

Table of Citations/Authorities

Cases

Applegate v. Barnett Bank of Tallahassee,
377 So. 2d 1150, 1152 (Fla. 1979).....pg 6

Connell v. Capital City Partners, LLC,
932 So. 2d 442, 443–44 (Fla. 3d DCA 2006).....pg 14

Curbelo v. Ullman,
571 So. 2d 443, 445 (Fla. 1990).....pgs 3, 7

Dabas v. Boston Investors Group, Inc.,
231 So. 3d 542, 545–46 (Fla. 3d DCA 2017).....pgs 2, 7, 9

De La Osa v. Wells Fargo Bank, N.A.,
208 So. 3d 259, 263-64 (Fla. 3d DCA 2017).....pgs 7, 9

Dysart v. Hunt,
383 So. 2d 259, 260 (Fla. 3d DCA 1980).....pg 20

Epic Metals Corp. v. Samari Lake East Condominium Ass'n, Inc.,
547 So. 2d 198, 199 (Fla. 3d DCA 1989).....pg 14

Estrada v. Estrada,
274 So. 3d 426, 429–30 (Fla. 3d DCA 2019).....pg 2

Florida Department of Transportation v. Juliano,
801 So. 2d 101, 108 (Fla. 2001).....pgs 3, 5, 6

Harris v. State,
238 So. 3d 396, 403 (Fla. 3d DCA 2018).....pg 15

Joanides v. Jubis,
886 So. 2d 1070, 1070–71 (Fla. 4th DCA 2004).....pg 13

Nationstar Mortgage,LLC v. Diaz,
227 So. 3d 726, 729 (Fla. 3d DCA 2017).....pg 2

Nembhard v. Universal Property & Casualty Insurance Co.,
326 So. 3d 760 (Fla. 3d DCA 2021).....pg 20

Reyes v. Aqua Life Corp.,
209 So. 3d 47, 51 (Fla. 3d DCA 2016).....pgs 3, 7, 9

Robertson v. State,
829 So. 2d 901, 906–07 (Fla. 2002).....pg 15

S. Florida Hospital Corp. v. McCrea,
118 So. 2d 25, 31 (Fla. 1960).....pg 4

Sousa v. Zuni Transportation, Inc.,
286 So. 3d 820, 824–25 (Fla. 3d DCA 2019).....pg 15

State, Department of Revenue ex rel. Prinzee v. Thurmond,
721 So. 2d 827, 828 (Fla. 3d DCA 1998).....pgs 2, 7, 8

Topps v. State,
865 So. 2d 1253, 1258 (Fla. 2004).....pg 8

Rules / Administrative Orders

Amendments to Florida Rules of Civil Procedure,
604 So. 2d 1110, 1122 (Fla. 1992).....pg 9

Eleventh Judicial Circuit Administrative Order No. 22-02……..pgs 9, 10, 17

Florida Rule of Civil Procedure 1.100(b).....pgs 9, 10, 16, 17

Florida Rule of Civil Procedure 1.110(d).....pg 20

Florida Rule of Civil Procedure 1.190(b).....pg 20

Florida Rule of Civil Procedure 1.540(b)(4).....pgs 1, 3, 4, 5, 7, 8, 13, 15, 20, 21

APPELLANTS' REPLY TO APPELLEES' ANSWER BRIEF

Appellants, Dr. Olanshile Shitta-Bey and Dr. Esteban Ivanoff-Tzvetcoff, appearing pro se, hereby respectively submit their Reply Brief in response to Appellees' Answer Brief and state as follows:

1. ARGUMENT

I. ORDER DENYING RULE 1.540(b)(4) RELIEF IS REVIEWED DE NOVO

This appeal presents a fundamental constitutional due-process question: **Where, before the February 27–28, 2024 hearing, were Appellants notified that Appellees', DE92 had been scheduled for adjudication?** Appellees identify no advance notice specifying the **separate Partial Motion for Summary Judgment against the individual pro se claims,** DE92. Neither the trial court's subsequent reliance on waiver nor Appellants' participation after expressly objecting to the adjudication of DE 92 can retroactively supply the constitutionally required advance notice.

Appellees invoke the wrong standard of review. This appeal challenges the January 27, 2026 order (R. 14569–14571) denying Appellants' motion under Florida Rule of Civil Procedure 1.540**(b)(4)** to vacate the judgment as void (R. 13139–13174). Whether a judgment is void presents a question of

law reviewed de novo. *Dabas v. Boston Investors Group, Inc.*, 231 So. 3d 542, 545–46 (Fla. 3d DCA 2017); *Nationstar Mortgage, LLC v. Diaz*, 227 So. 3d 726, 729 (Fla. 3d DCA 2017); *Estrada v. Estrada*, 274 So. 3d 426, 429–30 (Fla. 3d DCA 2019). If the judgment is void, vacatur is mandatory.

The Initial Brief expressly identified the de novo standard. (Initial Br. at 8–9). **The asserted defect is the complete absence of advance notice, not a mere procedural irregularity.** Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' claims DE92 (R. 8408-9175) was adjudicated on February 27–28, 2024, although no advance notice identified it as a matter to be heard. (R. 14000). The notices identified defendants separate MSJ against corporate co-plaintiff FAIMG which was represented by counsel (DE90, R. 9176-9293), not DE92. The TC identified FAIMG's motion as "**the only motion that I have"** (R. 14056), and Appellants contemporaneously objected when their separate claims were unexpectedly taken up. (R. 14068–14071). Appellees do not dispute that Appellants attended all FAIMG hearings as observers (Initial Br. 3, 14, 22) (R. 13996-7, 14000), and participation after objection could not retroactively supply the required advance notice. A judgment entered without constitutionally adequate notice may be void ab initio. *Dabas*, 231 So. 3d at 546; *State, Department of Revenue ex rel. Prinzee v. Thurmond*,

721 So. 2d 827, 828 (Fla. 3d DCA 1998); *Reyes v. Aqua Life Corp.*, 209 So. 3d 47, 51 (Fla. 3d DCA 2016).

Appellees improperly conflate the prior PCA with the subsequent order under review. The June 25, 2025 PCA (R. 13176) affirmed the April 30, 2024 Final Summary Judgment (R. 12436-44) on direct appeal. It did not review or affirm the January 27, 2026 denial of Rule 1.540**(b)(4)** relief, which did not yet exist (R. 14569-71). *Florida Department of Transportation v. Juliano*, 801 So. 2d 101, 108 (Fla. 2001). A void judgment remains subject to collateral attack. *Curbelo v. Ullman*, 571 So. 2d 443, 445 (Fla. 1990). (R. 13987-8)

The controlling question is whether the trial court denied relief from a judgment entered without constitutionally required advance notice of defendants separate motion for SJ against pro se appellant's claims DE92, not whether it reasonably exercised discretion to reopen litigation. If the judgment is void, the denial must be reversed and the judgment vacated.

II. THE PRIOR PCA, MANDATE, AND MANDAMUS DISMISSALS DO NOT ESTABLISH ADVANCE NOTICE OF DE92 OR NECESSARILY FORECLOSE REVIEW OF THE JANUARY 27, 2026 ORDER DENYING RULE 1.540(b)(4) RELIEF

Appellees' principal defense is that because Appellants raised and preserved the lack-of-notice issue in their first appeal from the April 30, 2024 Final Summary Judgment (R. 12436-44), the June 25, 2025 per curiam affirmance ("PCA", R. 13176) "necessarily means" this Court examined and rejected the complete lack of notice argument. (Answer Br. at 27) (citing *S. Florida Hospital Corp. v. McCrea*, 118 So. 2d 25, 31 (Fla. 1960). They further contend that the PCA and August 27, 2025 mandate (R. 13175) deprived the TC of authority to reconsider notice. (Answer Br. at 18, 34–35). These arguments conflate an issue raised on the prior appeal with one necessarily decided and overlook that this appeal reviews a distinct order denying relief under Florida Rule of Civil Procedure 1.540(b)(4). Rule 1.540(b)(4) permits a collateral challenge to a judgment alleged to be void. Although the prior PCA may govern issues it necessarily decided, Appellees have not shown that it necessarily decided whether Appellants received advance notice identifying DE92 for adjudication. This appeal reviews the later order denying Rule 1.540(b)(4) relief.

Under *Florida Department of Transportation v. Juliano*, 801 So. 2d 101, 108 (Fla. 2001), an unexplained affirmance establishes law of the case only when a contrary determination would be inconsistent with every possible correct basis for the prior decision. The June 25, 2025 PCA (R. 13176) contains **no written opinion, citation, discussion, analysis, or explanation** establishing that this Court necessarily determined that Appellants received advance notice identifying Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' claims, DE92 as a matter scheduled for adjudication on February 27–28, 2024. Nothing in the unexplained PCA establishes that this specific constitutional notice issue was actually and necessarily decided. *McCrea* does not dispense with *Juliano*'s requirement of a necessary determination, nor does it permit Appellees to attribute to an unexplained PCA a factual or legal conclusion that the decision does not establish.

Critically, the PCA reviewed the April 30, 2024 Final Summary Judgment (R. 12436-44), not the January 27, 2026 order (R. 14569-71) denying Rule 1.540**(b)(4)** relief, which did not yet exist. This is the first appeal reviewing that denial. (R. 13986-7) Although the different procedural posture does not itself eliminate the law of the case, Appellees must establish that the PCA

necessarily resolved the specific constitutional notice issue underlying this voidness challenge. *Juliano*, 801 So. 2d at 108.

Appellees argue that the February 27–28, 2024 hearing transcript (R. 14042-178) adds no new predicate facts because notice necessarily precedes a hearing. (Answer Br. at 27). That confuses the timing of notice with the transcript's evidentiary significance. Critically, **the contemporaneous hearing transcript was not part of the record in the prior appeal that resulted in the June 25, 2025 PCA.** An incomplete appellate record may independently require affirmance. *Applegate v. Barnett Bank of Tallahassee*, 377 So. 2d 1150, 1152 (Fla. 1979). Because the transcript establishing objections and other material facts was absent from the prior appellate record, the unexplained PCA does not reveal whether affirmance rested on the merits, an inadequate record, or another legally sufficient ground. Appellees therefore cannot establish merely from the PCA that advance notice of DE92 was necessarily determined to exist. *Juliano*, 801 So. 2d at 108; *Applegate*, 377 So. 2d at 1152. Applegate thus demonstrates that an unexplained PCA in a record-deficient appeal may rest on the inadequacy of the record rather than a merits resolution of the issues raised.

A judgment entered without constitutionally required notice is **void ab initio, a legal nullity that cannot acquire validity merely through the passage of time or ordinary principles of finality.** *Curbelo v. Ullman*, 571 So. 2d 443, 445 (Fla. 1990); *State, Department of Revenue ex rel. Prinzee v. Thurmond*, 721 So. 2d 827, 828 (Fla. 3d DCA 1998); *Reyes v. Aqua Life Corp.*, 209 So. 3d 47, 51 (Fla. 3d DCA 2016). Rule 1.540(b)(4) authorizes relief from such a judgment, which remains subject to collateral attack. This Court, sitting en banc, has recognized Rule 1.540(b)(4) as a vehicle for setting aside void final orders. *De La Osa v. Wells Fargo Bank, N.A.*, 208 So. 3d 259, 263–64 (Fla. 3d DCA 2016) (en banc). Once voidness is established, vacatur is mandatory. *Dabas v. Boston Investors Group, Inc.*, 231 So. 3d 542, 545–46 (Fla. 3d DCA 2017).

Rule 1.540(b)(4) permits a collateral challenge to a judgment alleged to be void, and the law-of-the-case doctrine reaches only matters necessarily decided. Appellees have not shown that the unexplained PCA necessarily determined that Appellants received advance notice identifying DE92 for adjudication.

The mandamus dismissals establish even less. Appellants filed those petitions to compel the trial court to rule on their pending Rule 1.540(b)(4)

motion. **The petitions were dismissed within days of filing, without requiring Appellees to file a response or address the merits of Appellants' constitutional notice claim.** Moreover, the January 27, 2026 order now under appeal did not exist when those petitions were filed or dismissed. Accordingly, the mandamus proceedings could not have reviewed or affirmed that subsequent order. Under *Topps v. State*, 865 So. 2d 1253, 1258 (Fla. 2004), an unelaborated extraordinary-writ disposition does not constitute a merits determination absent language or citation establishing otherwise. Appellees identify none. Appellees seek to substitute finality for advance notice they have not identified. But finality cannot transform a constitutionally void judgment into a valid one, nor establish that the prior PCA necessarily resolved the notice issue under *Juliano*. The dispositive question remains: **Where, before adjudication began on February 27–28, 2024, were Appellants notified that Appellees' separate Partial Motion for Summary Judgment against their pro se claims—DE92—would be adjudicated?** Appellees identify none. If the complete absence of required notice rendered the Final Summary Judgment void, it was a legal nullity, and Rule 1.540**(b)(4)** required vacatur notwithstanding considerations of finality. *Thurmond*, 721

So. 2d at 828; *Reyes*, 209 So. 3d at 51; *De La Osa*, 208 So. 3d 259; *Dabas*, 231 So. 3d at 545–46.

III. APPELLEES' "SINGLE NOTICE" THEORY FAILS UNDER RULE 1.100(b) AND ADMINISTRATIVE ORDER NO. 22-02, AND THEIR ALTERNATIVE NOTICE DEFENSE CANNOT SUPPORT AFFIRMANCE UNDER THE TIPSY-COACHMAN DOCTRINE

Florida Rule of Civil Procedure 1.100(b) provides that "[a]ll notices of hearing must specify each motion or other matter to be heard." The Florida Supreme Court deliberately added that requirement in 1992. *In re Amendments to Florida Rules of Civil Procedure*, 604 So. 2d 1110, 1122 (Fla. 1992); Fla. R. Civ. P. 1.100, committee notes (1992 amend.). Thus, where more than one motion is to be heard, the notice must specify each motion.

Eleventh Judicial Circuit Administrative Order No. 22-02 further requires motions brought before the court to be identified **"by name and by specific identifier,"** with the docket index number preferred or, alternatively, the e-filing number, full name, and filing date. Paragraph 2 of the order provides that **"[t]he motion identifiers must be listed in every attorney-generated notice of hearing for a specific motion."** It further directs that **"[e]ach motion noticed for hearing … should be the subject**

of a separate notice" and that **"[m]otions should not be combined in a single notice."** Accordingly, while the Administrative Order uses "should" concerning separate notices, **Rule 1.100(b) independently mandates identification of every motion to be heard, and the Administrative Order requires the corresponding motion identifiers.**

Appellees' Answer Brief places their **newly** asserted theory squarely against those requirements:

> **"On the same day, Appellees set both motions for summary judgment for hearing for February 27, 2024, at 10:00 a.m. (R. 11879-81). This time, Appellees noticed both motions in a single notice of hearing document."** (Answer Br. at 12).

Appellees thus expressly contend that two separately filed motions were noticed through "a single notice of hearing document." **Even assuming a single notice could encompass multiple motions, Rule 1.100(b) required that document to specify each motion, and Administrative Order No. 22-02 required the corresponding identifiers.** The decisive question is therefore not what Appellees intended to schedule, but whether the document they identify actually specified Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' claims. (DE92). It did not.

Appellees filed two separate summary-judgment motions against different litigants and claims: DE90 against corporate co-plaintiff Florida Association for International Medical Graduates ("FAIMG"), represented by counsel (R. 9176–9293), and Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' claims—DE92 (R. 8408–9175). As explained in the Initial Brief, proceedings concerning FAIMG and Appellants' individual claims had been separately addressed, separately noticed, and resolved through separate trial-court orders. (Initial Br. at 2–4, 12, 14–15). **Appellees do not dispute this history. Indeed, their Answer Brief expressly acknowledges that they previously scheduled the two separate summary-judgment motions through separate notices of hearing before those hearings were cancelled.** (Answer Br. at 10; R. 9318–9323). Having themselves previously treated the motions as separate matters requiring distinct hearing notices, Appellees cannot now reasonably contend that Appellants were required to infer that a subsequent notice expressly identifying only FAIMG's Motion for Summary Judgment also encompassed Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' individual claims—DE 92. (R. 11879–11881). **Appellants were entitled to advance notice identifying the dispositive motion actually scheduled for adjudication,**

not left to speculate that a notice expressly identifying FAIMG silently included their separate claims. Appellees' assertion that both motions were noticed through a "single notice of hearing document" (Answer Br. at 12) is contradicted by the document itself, which identifies FAIMG's motion but nowhere identifies DE 92 or Appellants' individual claims as matters to be heard. **Appellees cannot retroactively transform notice of one motion into notice of another through counsel's characterization of what was supposedly intended. The notice must speak for itself, and what it does not identify cannot be supplied by argument after adjudication.**

The February 28 continuation notice likewise identifies only "Continuation of Motion for Summary Judgement - FAIMG Motion for Summary Judgement." (R. 11911–11913). **Neither notice identifies DE92 as a motion to be heard.**

The contemporaneous transcript confirms the significance of that omission. The TC opened the February 27 hearing by stating, **"We have a motion for summary judgment, FAIMG motion for summary judgment,"** identifying it as **"the only motion that I have,"** and adding, **"If we have time we'll hear the others."** (R. 14056). Defense counsel then stated that

"there are two motions for summary judgment that Defendant wanted to have heard," one against the individuals and one involving FAIMG. (R. 14057–14058). FAIMG's counsel likewise stated, **"Before we would proceed, I thought the motion was against FAIMG."** (R. 14058).

When the court thereafter turned to Appellees' separate motion against the pro se Appellants, Dr. Shitta-Bey stated, **"So we are surprised this is coming up."** (R. 14068). Dr. Ivanoff objected that **"Ms. Kornfield scheduled this hearing only for FAIMG."** The court responded, **"Okay. I have heard this argument,"** and directed, **"We're going forward."** (R. 14070–14071; Initial Br. at 14–15). **This contemporaneous record directly contradicts the trial court's subsequent finding of waiver during the Rule 1.540(b)(4) proceedings.**

Appellants' participation after objecting to DE92 being called did not establish consent or retroactively provide advance notice. Appellants did not silently acquiesce; they objected, and the court proceeded notwithstanding their objection. Defense counsel's statement concerning what Defendants "**wanted to have heard"** cannot establish that Appellants received advance notice that DE92 had actually been scheduled for adjudication.

The contemporaneous dispute was not whether DE92 existed, but whether Appellants had received advance notice that it would be adjudicated. The written notices identified FAIMG; the trial court opened the hearing by identifying FAIMG's motion as "**the only motion that I have**"; FAIMG's own counsel understood the hearing to concern FAIMG; and Appellants contemporaneously objected when their separate claims were taken up.

Florida appellate decisions likewise recognize that a pending motion does not automatically become part of a hearing noticed for another matter merely because it exists. *Joanides v. Jubis*, 886 So. 2d 1070, 1070–71 (Fla. 4th DCA 2004); *Connell v. Capital City Partners, LLC*, 932 So. 2d 442, 443–44 (Fla. 3d DCA 2006); *Epic Metals Corp. v. Samari Lake East Condominium Ass'n, Inc.*, 547 So. 2d 198, 199 (Fla. 3d DCA 1989).

Appellees nevertheless advance notice as an alternative ground for affirmance, expressly arguing that "**[e]ven setting aside the law of the case doctrine," Appellants supposedly had notice. (Answer Br. at 31).** Their specific assertion that R. 11879–11881 **"noticed both motions in a single notice of hearing document"** (Answer Br. at 12), however, is being

advanced **for the first time on appeal**, not during the Rule 1.540**(b)(4)** proceedings. (R. 13703-13942)

Below, Appellants expressly challenged the complete absence of advance notice identifying defendant's separate motion for SJ against pro se claims, DE92 for adjudication. Appellees relied instead on an earlier scheduling email, a CourtMAP reservation, and Appellants' attendance and participation. They did not identify R. 11879–11881 as notice of DE92. Nor did the trial court find that document noticed DE92; it denied Rule 1.540**(b)(4)** relief after relying on the prior PCA and concluding that Appellants' participation waived the notice rights (R. 14010-2). **The specific "single notice" theory therefore was neither presented below nor a factual basis identified by the trial court for its January 27, 2026 order.**

Under *Robertson v. State*, 829 So. 2d 901, 906–07 (Fla. 2002), an alternative ground for affirmance must be supported by the record. See also *Sousa v. Zuni Transportation, Inc.*, 286 So. 3d 820, 824–25 (Fla. 3d DCA 2019) (addressing alternative grounds not presented below); *Harris v. State*, 238 So. 3d 396, 403 (Fla. 3d DCA 2018) (recognizing limitations on supplying necessary factual findings under the tipsy-coachman doctrine).

Although an appellate court may affirm on an alternative legal ground supported by the record, **the doctrine does not permit affirmance on factual premises unsupported by that record or dependent upon findings the appellate court cannot properly make.**

Neither of Appellees' notice theories establishes the required advance notice. Their earlier scheduling email, CourtMAP reservation, and Appellants' attendance at a hearing noticed for FAIMG do not establish that Appellants were notified that defendants's separate motion for SJ against pro se appellants' claim, DE92 would be adjudicated. Those circumstances cannot substitute for the identification required by Rule 1.100(b). Nor can Appellants' participation after their contemporaneous objections establish that advance notice existed before adjudication began.

Their newly asserted "single notice" theory fails on the face of the document itself. R. 11879–11881 identifies FAIMG, not DE92, and the continuation notice does the same. Neither specifies Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' claims, nor supplies its required motion identifier. **The trial court made no finding that R. 11879–11881 provided advance notice of DE92, and Appellees' characterization of that document cannot change its**

contents. To the extent Appellees' alternative defense depends on inferences concerning Appellants' supposed understanding rather than the notices themselves, such inferences cannot supply the missing identification or substitute for necessary factual findings.

Appellees have now identified the very document they contend provided advance notice of both motions. That document is dispositive of their "single notice" assertion because it identifies FAIMG alone. Rule 1.100(b) required each motion to be specified; Administrative Order No. 22-02 required the motion identifiers and directed that separate motions should receive separate notices. Neither counsel's assertion that she scheduled both motions nor Appellees' present characterization that the notice "noticed both motions" can supply the identification the written notice does not contain.

Does R. 11879–11881 identify Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' claims—DE92 as a motion to be heard on February 27–28, 2024? It does not. Appellees' alternative notice defense therefore supplies no record-supported basis for affirmance under the tipsy-coachman doctrine and does not overcome

Appellants' claim that DE92 was adjudicated without the required advance notice.

IV. APPELLEES' CORRECTION UNDERCUTS THEIR CLAIM THAT APPELLANTS PARTICIPATED IN SCHEDULING OR KNEW DE 92 WOULD BE HEARD

Appellees acknowledge that they, not Appellants, filed the hearing notices. (Appellees' Response to Motion for Show Cause Order at 2.) That admission undercuts their assertion that Appellants participated in scheduling or knew DE92 would be adjudicated. The record still contains no advance notice, certificate of service, or motion identifier showing that Appellees' separate Partial Motion for Summary Judgment against Appellants' claims—DE92—was set for hearing. The trial court identified FAIMG's motion as "the only motion that I have," and Appellants expressed surprise and objected when DE92 was unexpectedly taken up. (R. 11879–11881; 11911–11913; 14056, 14068–14071.)

V. THE UNDISCLOSED COURTMAP UPLOADS DID NOT PROVIDE ADVANCE NOTICE OF DE92 AND CONFIRM THE RESULTING DUE-PROCESS VIOLATION

The CourtMAP episode does not establish advance notice of DE92; it exposes the absence of such notice. Defense counsel acknowledged uploading **"all of the exhibits that we are going to use today"** pursuant to the court's protocol. (R. 14057). Those materials were then used during

adjudication of **unnoticed** Appellees' separate Partial Motion for Summary Judgment against the pro se Appellants' claims—DE92. When confronted with those materials, Appellants expressed surprise and objected that the hearing concerned FAIMG alone. (R. 14068–14070, 13996-7, 14000).

Rather than identify a pre-hearing notice specifying DE92, the trial court relied on the CourtMAP uploads, declared **"You're on notice,"** and observed that **"all pertinent information was uploaded."** (R. 14068–14069). **That declaration occurred during the hearing, after Appellants objected; it could not retroactively provide the advance notice required before adjudication.** Neither written hearing notice identified DE92. (R. 11879–11881; 11911–11913). When Appellants maintained their objection, the court directed, **"We're going forward."** (R. 14070–14071).

Defense counsel uploaded exhibits directly to the trial court through CourtMAP for use against the pro se Appellants without notifying them of that intended use. Appellants first learned during the hearing that those exhibits had been uploaded for use in adjudicating their separate claims (R. 14068-9). **Such undisclosed uploads cannot substitute for advance notice that Appellees' separate Partial Motion for Summary**

Judgment against the pro se Appellants' claims—DE 92—would be adjudicated, nor can their disclosure during the hearing retroactively cure the complete absence of that notice.

VI. THE TRIAL COURT SUA SPONTE RELIED ON WAIVER—A DEFENSE APPELLEES DID NOT ASSERT—DESPITE APPELLANTS' EXPRESS OBJECTIONS TO THE UNNOTICED ADJUDICATION OF DE 92

The trial court initially identified FAIMG's motion as "the only motion that I have." (R. 14056). When DE92 was unexpectedly taken up, Appellants expressly objected, but the court directed, **"We're going forward."** (R. 14068–14071). Nevertheless, during the Rule 1.540(b)(4) hearing, the court sua sponte concluded, "**I think that by appearing that day you waived any notice issues."** (R. 14010). Appellees had not asserted waiver as an affirmative defense. Fla. R. Civ. P. 1.110(d), 1.190(b); *Dysart v. Hunt*, 383 So. 2d 259, 260 (Fla. 3d DCA 1980); *Nembhard v. Universal Property & Casualty Insurance Co.*, 326 So. 3d 760 (Fla. 3d DCA 2021). **Appellants' express objections negate any inference of voluntary acquiescence. Their compelled participation after objection could neither waive the lack of advance notice nor retroactively cure the constitutional defect.** Neither the February 27 notice (R. 11879–11881)

nor the February 28 continuation notice (R. 11911–11913) identifies DE 92. The trial court's subsequent reliance on waiver did not establish that such advance notice existed or cure its absence. Accordingly, if the lack of notice deprived Appellants of their constitutional opportunity to be heard, the resulting judgment was void, and Rule 1.540(b)(4) required vacatur.

2. CONCLUSION AND RELIEF REQUESTED

This appeal turns on one dispositive question: where, before adjudication began on February 27–28, 2024, were Appellants notified that Appellees' separate Partial Motion for Summary Judgment against pro se claims—DE92—would be adjudicated? The record does not establish that Appellants received advance notice that DE92 would be adjudicated. As explained above, the hearing notices identified FAIMG's motion, and Appellants objected when the court took up their separate claims. The prior PCA, its mandate, and the other grounds Appellees invoke do not supply the missing notice or establish that the PCA necessarily decided this notice issue.

Appellants seek no ruling on the merits of DE92. They seek reversal of the January 27, 2026 order denying Rule 1.540(b)(4) relief, vacatur of the April

30, 2024 Final Summary Judgment as to their claims, and remand for further proceedings consistent with this Court's mandate.

(continues in next page)

Respectfully submitted,

Date: October 16, 2026

By: */s/ Esteban Ivanoff-Tzvetcoff*

Esteban Ivanoff-Tzvetcoff MD
Address: 1300 NE 109th St
Apt 306, Miami FL 331161
Phone: (305) 733-1896
Email: estebanivanoff@gmail.com
Pro se Appellant

By: */s/Olanshile Shitta-Bey*

Olanshile Shitta-Bey MD
Email: oshittabey@gmail.com
Phone: (954) 326-5516
Pro se Appellant

DECLARATORY OATH

We **HEREBY DECLARE** under penalties of perjury under Section 92.525(2) Florida Statute and 28 USC 1746 and Section 92.525(2), that the facts and statements in this brief are true and correct, and done in good faith.

By*: /s/ Esteban Ivanoff-Tzvetcoff*

By: */s/Olanshile Shitta-Bey*

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished by the U.S. Mail/electronic mail to Ms. Haley Kornfield, haley.kornfield@csklegal.com, Mr. Edward Polk, edward.polk@csklegal.com and Ms. Francesca Stein, francesca.stein@csklegal.com, scott.cole@csklegal.com, and Mr. Trevor Whitlow, trevor.whitlow@csklegal.com from Cole Scott & Kissane (CSK Legal) located at 9150 S Dadeland Blvd Ste 1400, Miami, FL 33156 this 16 of October of 2026.

By: */s/ Esteban Ivanoff-Tzvetcoff*

CERTIFICATE OF COMPLIANCE

I certify that this Reply Brief complies with the font in rules 9.045(e) and 9.210(a)-(b), Fla. R. App. P., as it is typed in Arial 14-point font and contains less than 4,000-word limit.

By: */s/Esteban Ivanoff-Tzvetcoff.*